
Condo Clear Services | Strata Tip of the Week

1 message

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To: Andrew Plank <info@andrewplank.com>

10 April 2024 at 08:05

Hi Andrew,

Strata Tip of the Week - A Duplex is Still a Strata

1. Regardless of the Size, a Strata is a Strata is a Strata

While some might find it surprising, *strata legislation in British Columbia applies to every type of strata development*. The same legislation that governs a 500 unit apartment style strata complex applies equally to a 100 townhouse strata project, to a 20 unit bare land strata development and to a 2 unit strata, **most often called a duplex**.

While, in some cases, the legislation adds extra requirements for a particular type of project (for example, only strata corporations with 5 or more strata lots must obtain depreciation reports), *the legal fundamentals are the same for all strata developments*.

2. What does this mean for a duplex strata?

This means that *even strata corporations made up of just two strata lots (duplexes) **are required** to abide by the requirements set out in the [Strata Property Act](#)*.

While this list is by no means exhaustive, here are some requirements that all strata corporations, **including duplexes**, must follow:

- Hold annual general meetings (AGMs)
- Elect a strata council
- Approve an annual budget
- Establish and contribute, through strata fees, to:
 - an operating fund
 - a contingency reserve fund (CRF)
- They must have bylaws
- They must obtain and maintain property insurance on:

- common property
- common assets
- buildings shown on the strata plan, and
- fixtures built or installed on a strata lot, if the fixtures are built or installed by the owner developer as part of the original construction on the strata lot

3. What if the duplex is not following these requirements?

It's important to note that **the strata is a self-enforcing scheme**. If a strata is not following its legislated requirements by either not doing something it is required to, or doing something incorrectly, *there is no "strata police" that will come to the rescue and enforce compliance with strata legislation*.

It is therefore important that, when working with consumers looking to purchase a strata lot within a two unit strata corporation (a duplex), *you review the strata documents, to ensure the duplex owners are following the requirements set out in the [Strata Property Act](#)*. If they do not appear to be, it is important that you recommend your clients obtain legal advice, to better understand the risks associated with purchasing a strata lot in a strata corporation which is not abiding by the requirements set out in the [Strata Property Act](#).

That's it for this week. If you have any suggestions for other topics you'd like us to cover, please let us know at info@condoclear.ca.

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1. We are a fully licensed brokerage under the [BCFSA](#), and carry [Errors and Omissions \(E&O\)](#) insurance.
2. We've been in business since 2017 and have completed over 3,000 strata reviews to date province wide.
3. Our [Review Advisors](#) have firsthand knowledge and experience. They've all been practicing strata managers.

A little about our services:

FAQs: [How do Condo Clear's services work?](#)

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Here is a [Sample Buyer's Review](#) that you can look through. If you have some time, we would love to setup a quick chat, to talk more about our review process and go over any specific needs you might have.

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